

AFR

Court No. - 32

Case :- WRIT - C No. - 38285 of 2011

Petitioner :- Devendra Sharma

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Vishnu Gupta,D.P. Singh

Respondent Counsel :- C.S.C.,Pankaj Kumar Shukla

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Mithal,J.

1. We have heard Shri D.P. Singh, learned counsel for the petitioner. Shri Pankaj Shukla appears for the respondents.

2. The petitioner is a tenant of House No.18, Ram Bagh Colony, Meerut. He was drawing and consuming electricity in his tenanted portion vide Connection No.0817/313301 [1 KW (Commercial)]. By this writ petition the petitioner is praying for quashing the notice dated 22.6.2011 issued by the SDO Vth, EUDD Sub Division Vth, Rangoli, Meerut asking the petitioner to show cause within a period of three days as to why his electricity connection may not be disconnected for concealing facts in his declaration dated 13.6.2011 with regard to his tenancy. The notice refers to a complaint made by Smt. Chandrakanta, the landlady made on the same day on 13.6.2011, informing the electricity department that she had given a notice on 4.4.2011 terminating the tenancy of the petitioner, and has filed suit for eviction against the tenant in the District Court, Meerut.

3. Learned counsel for the petitioner submits that a valid electricity connection cannot be disconnected on the ground that there is dispute between the landlord and tenant. He submits that the respondents have disconnected the electricity of the tenanted portion on 28.6.2011 without there being any inspection or complaint of unauthorised use, theft, or non-payment of bills.

4. Shri Pankaj Shukla, learned counsel for the respondents states that under Para 4.4 of the Electricity Supply Code, 2005 made under Electricity Act, 2003, a person in case of an individual making an application for new connection has to apply in prescribed form, complete in all respects and accompanied by the prescribed Registration-cum-processing fee, to be filed in duplicate in the office, which will include proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or proof of occupancy such as valid power of attorney or latest rent paid

receipt or valid lease deed or indemnity form. Para 4.4. of the Electricity Supply Code, 2005 is quoted as below:-

"4.4 Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annex 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with self-attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annex 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval / permission /NOC of the local authority, if required under any law /statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's/certified addresses..

(v) Work completion and Test certificate, on the prescribed format (Annex-4.4), given by the licensed electrical contractor.

(vi) Owner's consent for getting new supply (Annex 4.3)

(b) Licensee shall arrange to assist the applicants, if required, in completing the application form.

(c) The Licensee shall verify the application and the enclosed documents at the time of receipt of application. Written acknowledgement shall be issued on the spot. The acknowledgement shall indicate the date of proposed inspection (not later than 10 days in electrified areas, and two weeks in un-electrified areas) if the application is complete, otherwise it should mention the shortcomings if the application is incomplete.

(d) No application for the new connection for an electrified area shall be refused under any circumstances if it complies with statutory requirements and is in conformity with Act. In case consumer has not been intimated within stipulated period about any deficiencies in his application, the application shall be deemed to have been accepted for processing by the licensee

(e) Licensee shall not be responsible if the reasons for delay are on account of Right of Way, acquisition of land, technical feasibility and lack of transmission capacity etc, over which the licensee has no reasonable control, provided the reasons for the expected delay are communicated to the applicant within the period specified for energisation.

(f) If any information furnished in application form is found wrong or the installation is defective or the energisation would be in violation of provision of Act/Electricity Rules/tariff Order, the licensee shall not sanction the load and shall intimate the applicant the shortcomings/reasons thereof in writing on the spot as far as possible."

5. Shri Pankaj Shukla submits that the petitioner did not submit a valid indemnity bond and that since there was a dispute between landlord and tenant jeopardising the rights of electricity

department, and making recovery of the bill of consumption doubtful, the notice was given to the petitioner to show cause as to why the electricity may not be disconnected.

6. The objections taken by Shri Pankaj Shukla cannot be sustained. Para 4.4 of the Electricity Supply Code, 2005 is applicable for new connections, and not for disconnecting the electricity, if there is any dispute reported between the landlord and tenant or if the declaration is found to be incorrect.

7. In the present case the impugned notice does not state that the petitioner has made any false declaration or that the electricity connection was not sanctioned, after scrutiny of the proof of tenancy and other conditions provided in Para 4.4 of the Electricity Supply Code, 2005.

8. A dispute between the partners of a firm; lessor and lessee; landlord and tenants, or between family members cannot be made a ground to disconnect a valid electricity connection sanctioned after completing all necessary formalities and for which the bills are regularly paid.

9. We find that the electricity department has committed gross error in law in relying upon Para 4.4 of the Electricity Supply Code 2005 in giving notice and thereafter disconnecting the electricity connection of the petitioner.

10. The U.P. Power Corporation Ltd. has a monopoly of supplying electricity through its various corporations. It performs statutory functions under the Electricity Act, 2003 regulated by the U.P. Electricity Supply Code, 2005. The Corporation cannot act arbitrarily in disconnecting the electricity on extraneous considerations and for malafide reasons. In the twentieth century after the invention of electricity, and its use by various means, the supply of electricity has become necessary for sustaining human life. The right to use the electricity, can be equated with right to life. The Power Corporations with their monopoly over generation and supply of electricity have greater obligations to act fairly and for bonafide purpose. The disconnection of electricity for reasons other than those, which are authorised under the Electricity Act, 2003, and the regulations made thereunder, for malafide purpose has not to be seen only as breach of statutory provisions of law, but violations of fundamental rights of life guaranteed under Art.21 of the Constitution of India.

11. In the present case the only reason given in the impugned

notice dated 22.6.2011 is a complaint made by the landlady that she has terminated the petitioner's tenancy on 4.4.2011 and has filed a suit for eviction in the District Court Meerut. In our opinion the complaint made by landlady for whatever reasons there may be against the petitioner to vacate the tenanted accommodation cannot be a ground to disconnect electricity. The landlady appears to have adopted an illegal method by persuading the respondents to disconnect the petitioner's electric supply to expedite his eviction. It is apparent that the respondents have acted wholly illegally in entertaining the complaint of the landlady in disconnecting the electric supply.

12. Shri Pankaj Kumar Shukla submits that the petitioner's indemnity bond was defective. He has tried to justify the notice and consequent disconnection of electricity on 28.6.2011 on the grounds, which are not given in the notice. We find that even if the fact is correct, it did not authorise the respondents to disconnect the electricity. The petitioner should have been asked to supply the deficiency in the documents.

13. It is admitted to the respondents that the electricity connection was disconnected on 28.6.2011. The difficulties faced by the petitioner and his family in this hot and humid weather and the harassment faced by him can be easily understood. In the summer and monsoons, the disconnection of electricity even for a few hours causes serious discomfort specially to the old people and young children.

14. Since we have found that action of the electricity department for disconnecting the electricity on the ground of dispute with the landlord was wholly illegal, arbitrary and malafide, we **allow** the writ petition, and quash the impugned notice dated 22.6.2011 with direction to the respondents to reconnect the electric supply forthwith, without any delay.

15. We also find justification, in the special circumstances of the case in which the electricity department has played to the tune of the landlady, apparently for extraneous reasons, to direct that the S.D.O. Vth, EUDD Sub Division Vth Rangoli, Meerut to pay Rs.10,000/- as costs of this writ petition, and compensation for illegal, arbitrary and malafide action. The cost shall be paid to the petitioner within a month.

Order Date :- 14.7.2011
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